

Gul Mohammad v. U.P. Power Corporation and 2 Others

Allahabad High Court · Division Bench · 21 October 2013 · 2013 SCC OnLine All 9135 · Writ - C No. 57502 of 2013 · **Writ petition disposed of relegating the consumer to the Clause 6.5(b) mechanism, with recovery under the 1957 Dues Recovery Act stayed pending the representation**

HEADNOTE

A consumer disputing the accuracy of a bill must invoke the self-contained mechanism of Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 - paying under protest either the sum claimed or the charges computed on the average of the preceding six months' bills (whichever is less) and filing a complaint with the competent authority, to be decided within seven days. Where a running bill of Rs. 2,761 was allegedly inflated to a demand of Rs. 74,424 under Section 3 of the U.P. Electricity (Undertaking) Dues Recovery Act, 1957, the Court disposed of the writ directing that, if the consumer files a representation and deposits the six-month-average charges, it be decided within seven days, and stayed recovery under the demand notice until then.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

Bill-accuracy dispute pursued via the Clause 6.5(b) pay-under-protest-and-complain mechanism; recovery stayed

QUESTION

Where a bill is alleged to be grossly inflated and recovery is threatened under the 1957 Dues Recovery Act, what is the consumer's remedy?

HOLDING

Clause 6.5(b) provides the remedy: the consumer may pay under protest either the sum claimed or the six-month-average charges (whichever is less) and complain to the competent authority (here the Executive Engineer / respondent no. 2), the complaint to be decided within seven days. The Court directed that, on such a representation with deposit of the six-month-average charges, it be decided within seven days, and stayed recovery under the demand notice until its disposal. ¶ (pp. 553-554)

LIMITING FACTS

Running bill of Rs. 2,761 allegedly inflated to a Rs. 74,424 demand under s.3 of the 1957 Dues Recovery Act; consumer (successor of deceased father) paying bills; competent authority identified.

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A grossly-inflated-bill grievance is to be pursued through the Clause 6.5(b) pay-under-protest-and-complain mechanism, with recovery stayed pending decision. ¶ (pp. 553-554)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF RS. 74,424 WAS CORRECTLY COMPUTED

Left to the competent authority on the Clause 6.5(b) complaint. ¶ (p. 554)